Except

How the Civil War Was Decided, and What It Left Open

15 MINUTE HISTORY · NARRATION SCRIPT · 1,417 WORDS · ABOUT 8:43

> ***Driving question:*** *How was the Civil War finally decided? And when it was over, what had it settled for good, and what had it left open?*

Underlined = vocabulary card on screen · *italic* = spoken with emphasis · timestamps are estimates until the voice is recorded

0:00 Cold Open

The amendment that ended slavery in the United States has an exception in its very first sentence.

Here it is. The 13th Amendment. Neither slavery nor forced labor shall exist in the United States, it says, "*except as a punishment for crime*."

Except as a punishment for crime. Six words. Hold onto them. We'll come back to them.

But first, the Union had to win a war it still wasn't sure it could win. In the summer of 1863, Robert E. Lee's army was marching into Pennsylvania.

So here's the question I want to answer today: How was the Civil War finally decided? And when it was over, what had it settled for good, and what had it left open?

It starts with two battles in the same week, hundreds of miles apart.

0:56 One Week in July

July 1st, 1863. Lee's army collides with the Union army at a small crossroads town in Pennsylvania called Gettysburg.

They fight for three days. On the third day, Lee orders a huge attack straight at the center of the Union line. About 12,500 men march across nearly a mile of open field. It's called **Pickett's Charge**. Union cannons and rifles tear it apart. More than half the attackers are killed, wounded or captured.

Lee retreats to Virginia. He will never invade the North again. In three days, the two armies lose about 50,000 men killed, wounded, captured or missing.

The very next day, July 4th, far to the west, the city of Vicksburg, Mississippi, surrenders to General Ulysses S. Grant after a 47-day siege. Soon the Union controls the whole Mississippi River. Remember the Anaconda Plan? The Confederacy is cut in two.

So which win mattered more? Gettysburg ended Lee's invasion. Vicksburg split the South. People still argue about it. But Lincoln had noticed who won at Vicksburg. In March 1864, he put Grant in charge of all the Union armies.

1:58 A New Birth of Freedom

That November, Lincoln traveled to Gettysburg to help dedicate a cemetery for the Union dead.

The main speaker talked for about two hours. Lincoln spoke for about two minutes. Around 270 words.

He started with a date. "Four score and seven years ago." A score is 20. So, 87 years before 1863. That's 1776. Not the Constitution. The Declaration of Independence, and its promise that "all men are created equal."

Then he said what the living owed the dead: to make sure the nation would have "a new birth of freedom."

Notice what changed. Two years earlier, the war was about holding the Union together. Now Lincoln was saying it was about *finishing what 1776 started.*

Five copies of the speech in Lincoln's handwriting survive, and no two are exactly alike. So which one is the real speech? Good question. There was no recording, and even the reporters wrote it down differently.

2:50 Who Carried the War? (quiet chapter: no jokes, slower voice)

Meanwhile, both sides were running out of volunteers.

In 1862, the Confederacy started a **draft**, a law requiring men to serve. It was the first in American history. The Union started one in 1863.

But the Union's draft had a catch. A drafted man could pay 300 dollars to get out of it, roughly a year's pay for a laborer. Or he could hire a substitute. In the South, one white man on any plantation with 20 or more enslaved people could be excused too. People called it "a rich man's war and a poor man's fight."

In July 1863, just days after Gettysburg, the draft began in New York City, and the city exploded. Rioters, many of them poor Irish immigrant workers, attacked draft offices. Then they turned on Black New Yorkers. They resented the draft, and they feared that freed people would compete for their jobs. Rioters burned an orphanage for Black children. The children escaped. But at least 119 people were killed in four days.

The South was suffering too. The blockade choked off supplies. The Confederate government printed money to pay for the war, and prices soared. In April 1863, hungry women in Richmond broke into shops, demanding bread.

Who carried the war? Often, the people with the least say in it.

4:10 Hard War

In 1864, Grant went after Lee in Virginia, battle after battle, and wouldn't let up. The losses were enormous, and many Northerners were sick of the war. That summer, Lincoln expected to lose the election.

His opponent was a familiar face. George McClellan. The general Lincoln had fired.

Then, in September, General William Tecumseh Sherman captured Atlanta. The news changed everything. In November, Lincoln won a second term.

Then Sherman marched from Atlanta to the sea at Savannah, about 300 miles. His army lived off the land. It tore up railroads, burned barns and supplies, and took what it needed. Sherman wanted Southerners, not just Southern armies, to feel "the hard hand of war."

Was that **total war**, a war against a whole society? Or **hard war**, aimed mostly at property and supplies, not at civilians' lives? Historians still argue. To the North, Sherman broke the Confederacy's will to fight. To Georgians in his path, it felt like destruction for its own sake.

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5:16 Appomattox

By April 1865, Lee's army is starving and nearly surrounded. On April 9th, at a village in Virginia called Appomattox Court House, Lee surrenders to Grant.

Look at the terms. Lee's men aren't arrested. They promise not to fight again, and they go home. As long as they keep that promise, they're

protected from arrest or trial. Men who own horses keep them, for spring planting. Grant sends food to Lee's hungry soldiers.

That was on purpose. Grant and Lincoln wanted the country put back together, not punished.

Five days later, Lincoln is shot at Ford's Theatre in Washington by John Wilkes Booth, an actor who supported the Confederacy. He dies the next morning. The other Confederate armies surrender over the next two and a half months.

But in Texas, freedom still hadn't been enforced. On June 19th, 1865, Union soldiers arrived in Galveston and announced that all enslaved people in Texas were free. That day became **Juneteenth**.

6:10 Except (quiet chapter: no jokes, slower voice)

Now the amendment. Remember, the Emancipation Proclamation was a war measure. It didn't reach the border states, and once the war ended, a court might throw it out. To end slavery for good, it had to go into the Constitution.

The Senate passed the **13th Amendment** in April 1864, 38 to 6. The House took longer. It finally passed on January 31st, 1865, 119 to 56, and people in the gallery cheered.

Then three-fourths of the states had to ratify it, or approve it. The state that put it over the top, on December 6th, 1865, was Georgia.

Slavery was over in the United States. All of the nearly 4 million people once enslaved were now legally free.

But read it again. "Except as a punishment for crime."

Even before the amendment was ratified, Southern states began passing **Black Codes**, laws aimed only at Black Americans. In Mississippi, a Black person without a job could be arrested and fined, and if they couldn't pay, hired out to work for whoever paid the fine. Arrest someone

for a crime, and that exception could put them back to forced work. Later, under **convict leasing**, states rented out prisoners to plantations, mines and railroads.

Freedom was in the Constitution. What freedom would mean was another fight.

7:29 What It Settled

So let's go back to the question. How was the war decided?

Mostly on the battlefield. Gettysburg ended Lee's invasions. Vicksburg cut the Confederacy in two. Atlanta saved Lincoln's presidency. And the people who carried the war were often the ones with the least say: poor men who couldn't pay 300 dollars, Black soldiers paid less to fight, and civilians in the army's path.

What did it settle? Two big things. No state could leave the Union. And slavery was over, written into the Constitution, where no president or court could easily undo it.

What did it leave open? Almost everything else. Were freed people citizens? Could they vote? Who would protect their rights, Washington or the states?

The war answered whether the country would stay together. It didn't answer what kind of country it would be.

That fight is called Reconstruction. And it started with six words. Except as a punishment for crime.

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